

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Faridpur

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং

	Kazi Khairul Hasan Azad	আবেদনকারী
মাধ্যম	Mr. Ashoke Kumar Bose, Advocate	বনাম

The State and another

Ms. Shiuli Khanom, D.A.G along with
Mr. S.M. Emamul Musfiqur, A.A.G
Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 2631 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 2631 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 04.07.2017 passed by the learned Additional Sessions Judge, 2nd Court, Faridpur in Criminal Appeal No. 18 of 2015 dismissing the appeal and thereby affirming the judgment and order of conviction dated 19.11.2014 passed by the learned Joint Sessions Judge, 1st Court, Faridpur in Sessions Case No. 249 of 2014 arising out of Sador C.R. Case No. 808 of 2013 convicting the convict petitioner under section 138 of the Negotiable Instruments Act, 1861 and sentencing him to suffer rigorous imprisonment for 01 (one) year and also pay fine of Tk. 700,000/- (seven lac) out of which petitioner get 5,00,000/- (five lac) and rest amount of Tk. 200,000/- (two lac) be deposited to state treasury should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Kazi Khairul Hasan Azad, son of late Kazi Moazzem Hossain be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Joint Sessions Judge, 1st Court, Faridpur. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩